

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 18, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00633

COUNTY OF SANTA CRUZ, et al. v. FINSAND, et al.

DEFENDANT JRG ATTORNEYS AT LAW’S DEMURRER TO AND MOTION TO STRIKE FIRST AMENDED CROSS-COMPLAINT

The demurrer is sustained without leave to amend and the motion to strike is granted.

Defendants Jeffrey Finsand, Benjaporn Finsand, and Donald C. Schwartz’s (“defendants”) first amended cross-complaint was filed December 18, 2025, and alleges seven causes of action against cross-defendants JRG Attorneys at Law, Law Offices of Rice, Luxon, and Bolster-Grant, Benjamin Frederick Rice, Jr. and M. Allen Hopper related to their allegedly negligent and fraudulent legal work.

Cross-defendant JRG Attorneys at Law filed its demurrer to the initial cross-complaint on November 17, 2025. A joinder was filed on December 9, 2025, by cross-defendant Frederick Benjamin Rice, Jr. The amended cross-complaint was filed before hearing on that earlier demurrer, mooted the hearing. Cross-defendant thereafter filed this renewed demurrer and motion to strike.

Defendants’ opposition and Mr. Schwartz’s joinder were filed one court day late but failed to acknowledge or seek leave for the late filings. The Court declines to consider them. (Cal. Rules of Court, rule 3.1300(d).) Defendants also failed to oppose the demurrer to the sixth and seventh causes of action, from which the Court may infer defendants have abandoned those claims. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934; Cal. Rules of Court, rule 3.1113(a).)

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Based on the motions, the Court finds the first amended cross-complaint and each cause of action therein fails to state a cause of action against JRG and is improper, uncertain, ambiguous, and/or unintelligible (Code Civ. Proc., § 430.10, subd. (e), (f).) Based upon these fatal uncertainties and the fact that this amended pleading is identical in substantive allegations to the previous one, the Court finds there is no reasonable possibility that the defects can be cured by further amendment. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.) The first amended cross-complaint against JRG Attorneys at Law is dismissed with prejudice.

Further, the Court grants the motion to strike related to JRG Attorneys at Law, specifically striking the following from the first amended cross-complaint:

1. Reference to BENJAPORN FINSAND and the “Finsand family” in the caption and Statement of the Case, pp. 4, lines 13; 17.
2. References to Benjaporn Finsand and claims for loss of consortium in p. 5, ¶ 2.
3. References to Benjaporn Finsand and “Mrs. Finsand” in the Second Cause of Action, p. 10, ¶ 15, p. 11, ¶ 23-24.
4. References to Benjaporn Finsand in the Third Cause of Action, p. 12, ¶ 25-28.
5. References to Benjaporn Finsand and “loss of consortium damages” in the Fourth Cause of Action, pp. 12-13, ¶ 29-32.
6. The entire Sixth Cause of Action for financial elder abuse, p. 14, ¶ 37-43.
7. Prayer for Relief item 6 (“for trebling pursuant to the Elder Abuse Claims herein”) p. 16.
8. The prayer for relief, subheading “For Benjaporn” and prayer for relief items 10-12, p. 16.

No. 25CV03072

WELLS FARGO, N.A. v. RATNAGOPAL

PLAINTIFF’S MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

As explained below, the motion for summary judgment is granted. Judgment is entered for plaintiff Wells Fargo, N.A. and against defendant Jeyachandran Ratnagopal.

I. BACKGROUND AND MOTION

This is a limited jurisdiction collection matter filed by plaintiff Wells Fargo, N.A. against defendant Carrie Wildenboer seeking \$20,855.54 for an unpaid credit card debt. There are two